

Monday August 10, 2026

1:30 p.m. – General Discussion

Commissioners Ron Smith, Chair; Colene Martin, Vice-Chair; Gary Richardson; Nikole Guzman, Recorder
Additional Attendees: Wally Hicks, Legal Counsel; Scott Hyde, Community Justice Director; Dave Daniel, County Sheriff; Matt Eide, Finance Director; and Aurora Frost.

Chair Ron Smith called the meeting to order at 1:30 p.m.

1. Declaration of Potential Conflicts of Interest

Commissioners Richardson, Martin, and Smith each declared no potential conflicts of interest.

2. Adult Jail and Juvenile Detention Five-Year Local Option Tax

Wally Hicks, Legal Counsel, presented a revised draft of the Adult Jail and Juvenile Detention Five-Year Local Option Tax for continued Board discussion. He explained that the discussion from the prior week had resulted in preparation of an alternative proposal for an 89-cent-per-\$1,000 assessed value levy dedicated to the adult jail, without including juvenile detention in the ballot measure. The draft was being reviewed in preparation for possible action at the Wednesday Weekly Business Session.

Commissioner Richardson asked Legal Counsel to clarify the draft reference to an assessed value of approximately \$239,908. Mr. Hicks explained that the figure was supplied by the Assessor and represented the average assessed value of improved residential property, rather than the average or median value of all property. The Board agreed that explaining the figure would help residents understand the estimated tax impact.

Commissioner Richardson revisited the proposed commitment to maintain jail capacity for 185 adults in custody and asked whether the jail historically operated at that level. Sheriff Dave Daniel stated that the jail had historically housed approximately 185 adults in custody and, at times, more, although recent populations have generally been lower. He explained that current housing capacity is affected by the classification and behavior of adults in custody, mental-health concerns, and the need to separate some individuals. Sheriff Daniel emphasized that staffing requirements are driven by the need to safely operate the entire facility and its intake, booking, control, food, medical, and housing functions, and do not decrease proportionally when the daily population is below 185.

The Board discussed historic staffing and budget performance. Commissioner Richardson reviewed prior levy-year personnel expenditures and noted that personnel budgets had regularly been underspent, largely because vacancies and turnover can take many months to refill. Sheriff Daniel explained that the jail was currently below desired staffing levels, was using overtime, and had patrol deputies volunteering for overtime in the jail. He stated that recruitment and training can take six to seven months before a new corrections deputy is fully useful and that the 89-cent figure had been developed to support the staffing level the Sheriff believes is necessary to operate the jail safely and reliably.

The Commissioners considered several possible levy rates and funding structures, including a lower jail-only rate, the 89-cent jail-only proposal, retaining the existing 93-cent rate, and a higher rate that would dedicate more revenue to juvenile services. Commissioner Richardson questioned whether historical personnel savings could support a slightly lower jail rate while preserving service levels and allowing the County to address juvenile funding separately. Commissioner Martin expressed concern that repeatedly changing the proposed rate and structure could be confusing to voters and stated a preference for keeping the existing 93-cent rate. Chair Smith similarly emphasized that voter understanding and confidence were central considerations and favored a straightforward renewal rather than presenting a substantially different tax structure.

Sheriff Daniel continued to support the 89-cent jail funding level, explaining that the figure reflected the staffing and operational resources his office believes are necessary to maintain the stated jail service commitment. The Board also discussed that unused levy revenue remains within the dedicated fund and can carry forward rather than being redirected to unrelated purposes.

Recess: The Board recessed the General Discussion at 2:15 p.m. and reconvened at 2:45 p.m. to obtain additional financial information. Matt Eide and Aurora Frost joined the discussion regarding jail operating costs and levy projections.

After reconvening, Finance and the Sheriff reviewed the jail budget in greater detail. The discussion distinguished salaries and overtime from benefits and other operating costs such as inmate medical care, food, supplies, uniforms, training, equipment, facilities costs, insurance, and internal service charges. Finance explained that historical personnel vacancies had created budget cushions, while the current fiscal-year budget anticipates fuller staffing. The Board discussed that a lower levy rate could reduce revenue by approximately \$110,000 for each one-cent reduction and that any shortfall in a levy promising a specific jail service level could ultimately require General Fund support.

Commissioner Martin reiterated her preference for renewing the existing 93-cent levy, noting that the County would still need to address any funding gap for juvenile services and that retaining the familiar rate would be easier for the public to understand. Commissioner Richardson continued to favor a clearly defined jail-only approach but acknowledged the need for a long-term plan for juvenile justice and the District Attorney. Chair Smith agreed that keeping the current rate would provide greater flexibility while the County develops a more comprehensive public-safety funding strategy.

Mr. Hicks reviewed the State ballot-title guidance regarding use of the term renewal. He explained that a measure may be described as renewing a current local option tax when it is for substantially the same purpose and the requested rate or amount is equal to or less than the current rate. The Board discussed revised explanatory language under which the adult jail would remain the first funding priority, including maintaining capacity for 185 adults in custody and the ability to accept persons arrested in Josephine County, while any remaining revenue from the measure could partially support Juvenile Department detention operations. Continued juvenile service levels would remain subject to the availability of other funding.

The Board discussed the need to preserve flexibility for future funding solutions for Juvenile Justice and the District Attorney and stated that the proposed levy language should not prevent the County from considering a future separate levy, service district, or other funding source. Commissioners also discussed beginning a public-information effort regarding the role Juvenile Justice plays in public safety, rehabilitation, and reducing future adult criminal activity.

By the conclusion of the discussion, the Board reached consensus to proceed with a 93-cent renewal approach using revised language that would fully fund the adult jail first and allow remaining levy revenue, if any, to partially fund Juvenile Department detention operations, subject to the availability of other funds. Legal Counsel was directed to revise the draft and return it to the Board for consideration at the upcoming Weekly Business Session. No formal vote on the ballot measure was taken during this General Discussion.

3. Other

None heard.

4. Additional Subject Matters from Commissioners/Announcements

None heard.

The meeting adjourned at 3:25 p.m.